

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simone Cherry (T2)	Team: Team # 5	CCRB Case #: 201002524	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 02/20/2010 6:15 PM	Location of Incident: Southbound Sutphin Boulevard and Rockaway Boulevard	18 Mo. SOL 8/20/2011	Precinct: 113
Date/Time CV Reported Tue, 02/23/2010 11:53 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 02/23/2010 11:53 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Gukelberger	26809	948350	QS IRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Duffy	27097	948329	QS IRT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Gukelberger	Discourtesy: PO Daniel Gukelberger spoke obscenely and/or rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Daniel Gukelberger	Force: PO Daniel Gukelberger used physical force against § 87(2)(b)	B . Exonerated

Case Summary

On February 23, 2010, § 87(2)(b) called the CCRB to file this complaint. An Internal Affairs Bureau log referral number 10-09152 was later generated and received at the CCRB. On February 20, 2010, at approximately 6:15 p.m., at the southbound corner of Sutphin Boulevard and Rockaway Boulevard in Queens, Police Officer Daniel Gukelberger issued § 87(2)(b) six summonses § 87(2)(b).

During this car stop, the following allegations resulted:

- **Allegation A- Discourtesy: Police Officer Daniel Gukelberger spoke obscenely and/or rudely to** § 87(2)(b) § 87(2)(g). Therefore, it is recommended that allegation A be closed as unsubstantiated.
- **Allegation B- Force: Police Officer Daniel Gukelberger used physical force against** § 87(2)(b) § 87(2)(g). Therefore, it is recommended that allegation B be closed as exonerated.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male § 87(2)(b) and has brown hair and brown eyes, and is unemployed. He was interviewed at the CCRB on March 22, 2010 (encs. 8a-c).

CCRB Testimony:

On February 20, 2010, at approximately 6:15 p.m., § 87(2)(b) reported that he was alone when he drove from a pharmacy to Burger King. As he sat, in a turning lane, southbound Sutphin and Rockaway Boulevard in Queens, Police Officers Daniel Gukelberger and Michael Duffy walked up to his car. PO Gukelberger tapped, about five to six times, on the back of his car window. § 87(2)(b) said the tap sounded like a metal object, possibly a flashlight, had hit the car, but he saw no flashlight or dents only chipped black paint near the trim of his car window. § 87(2)(b) also said that the tap startled him and he quickly turned around, which triggered pain to his back. § 87(2)(b) also said he had back surgery sometime in April 2009 and wears a back brace. However, PO Gukelberger proceeded to bang harder on his car window while telling him to “lower the fucking [back car] window.” Instead § 87(2)(b) told PO Gukelberger that his back car window was broken. He then lowered his front car window and asked why he was stopped. PO Gukelberger then told § 87(2)(b) to provide his driver’s license and that he would tell him why. § 87(2)(b) complied, but PO Gukelberger walked away. § 87(2)(b) said about five minutes had past when he exited his vehicle. He saw PO Gukelberger talking to PO Michael Duffy (identified via investigation) and asked why he was stopped. PO Gukelberger then ran up to him and told him to reenter his vehicle. Instead § 87(2)(b) told PO Gukelberger that he was having back problems and needed to stretch and again asked why he stopped him. Eventually, § 87(2)(b) reentered his vehicle, but prior to entering said due to his back pain that he could not quickly reenter the vehicle. Instead he held onto his car door and ceiling for about twenty seconds, and PO Gukelberger grabbed the front of his jacket and pushed him, about ten times, into the car. PO Duffy then pulled PO Gukelberger off him. § 87(2)(b)

§ 87(2)(b) then told PO Gukelberger, “You are supposed to be here to protect and serve. Why are you doing this to me? What did I do, why are you pulling me over? Get your hands off of me.” PO Gukelberger replied, “I don’t give a shit about your back, get back in the car.” Afterwards, § 87(2)(b) heard PO Gukelberger tell PO Duffy to call for a car because “they were taking this one.” § 87(2)(b) then used his cellular phone and called 911 and said that PO Gukelberger told him to hang up the “fucking” phone because he was in charge. However, § 87(2)(b) said he placed his cellular phone on speaker mode and called the Internal Affairs Bureau and PO Gukelberger calmed down. § 87(2)(b) also called his cousin and mother. Afterwards, Police Officer Gukelberger wrote § 87(2)(b) six summonses § 87(2)(b).
§ 87(2)(b) Later this same day, § 87(2)(b) went to § 87(2)(b) Emergency Department for his back pain.

NYPD Statements:

Subject Officer: Police Officer Daniel Gukelberger

- *Police Officer Daniel Gukelberger, a § 87(2)(b) white male, § 87(2)(b) with brown hair and brown eyes.*
- *On February 20, 2010, Police Officer Gukelberger worked from 5:30 p.m. until 2:05 a.m., assigned to Queens Impact Response Team. He was partnered with Police Officer Michael Duffy, on foot, and was dressed in uniform.*

Memo Book (encs. 9a-c)

Police Officer Daniel Gukelberger noted in his memo book that at 6:15 p.m., he stopped § 87(2)(b) in his 2000 black BMW that had New York State license plate #§ 87(2)(b) in a left lane, at Sutphin and Rockaway Boulevards in Queens. § 87(2)(b)'s rear car window was broken and PO Gukelberger opened his car door for his safety and immediately closed it, prior to instructing § 87(2)(b) to pull over at Rockaway Boulevard in Queens. § 87(2)(b) exited his car and refused to comply with repeated orders to remain in his motor vehicle. PO Gukelberger feared for his safety and placed his hands on § 87(2)(b)'s arms and instructed him to reenter the vehicle. While outside, § 87(2)(b) jerked his car door and stated, “I’ve got my own fuckin door.” PO Duffy then called for a sergeant and Sergeant Armstrong arrived. § 87(2)(b) was verbally aggressive stating, “He did not have to return to his vehicle” and used profanity by stating, “I’ve got to deal with punk ass cops.” § 87(2)(b) was issued [six] summonses § 87(2)(b).

§ 87(2)(b) When § 87(2)(b) was being served with the summonses, he asked the officers for their information and told the officers, “Do you really want to do this, you sure you want to do this?”

Police Officer Daniel Gukelberger provided a statement to the CCRB on May 11, 2010 (encs. 9d-f). At approximately 6:15 p.m., Police Officer Gukelberger stated he was on foot patrol with Police Officer Michael Duffy when he walked up to § 87(2)(b)'s vehicle because it had dark tinted car windows. PO Gukelberger said he could not see through the back window, so he first used his hand to tap on § 87(2)(b)'s back car window. He then told § 87(2)(b) to roll down the car window, but § 87(2)(b) replied that the car window could not roll down. However, PO Gukelberger denied that he told § 87(2)(b) to “lower his fucking car window.” PO Gukelberger then told § 87(2)(b) that he was going to open his back car door for his safety to make sure there was no weapon because he could not see through the back car

window. PO Gukelberger peeked into the car and saw no weapons then immediately closed the car door and proceeded to walk to the front of the car.

§ 87(2)(b) lowered his front car window and PO Gukelberger instructed him to place his car in park. § 87(2)(b) complied and PO Gukelberger asked for his driver's license. At this time, § 87(2)(b) was talking on his cellular phone and told the individual on the phone, "Hold on, I've got to deal with these punk ass cops." PO Gukelberger took § 87(2)(b) driver's license and told him to park northbound on Rockaway Boulevard to prevent a car from hitting him. PO Gukelberger then walked towards § 87(2)(b) vehicle to tell him why he was being stopped, but § 87(2)(b) had exited his vehicle and walked to the back of his car. PO Gukelberger told § 87(2)(b) about three times, to reenter his vehicle and he refused by saying, "I don't have to get back into my car. I can do whatever I want." PO Gukelberger said he then placed his hand on § 87(2)(b)'s shoulder to turn him around and guided him back to the front of his car. § 87(2)(b) then voluntarily reentered his vehicle, but jerked the car door and said, "I can shut my own fuckin door." However, PO Gukelberger denied that he assisted § 87(2)(b) into his car or had any further physical contact with § 87(2)(b). Instead PO Gukelberger acknowledged that § 87(2)(b) asked him why was he being pulled over and told him that "he [officer] was suppose to protect and serve." However, PO Gukelberger denied that he heard § 87(2)(b) say, "Why are you doing this to me?" or "Get your hands off of me." PO Gukelberger also denied that he told § 87(2)(b) "I don't give a shit about back, get back in the car." Police Officer Gukelberger also said that he and § 87(2)(b) had simultaneously called 911, but he denied telling § 87(2)(b) to "hang up [his] fucking phone because he [officer] was in charge." Afterwards, Sergeant Armstrong arrived and PO Gukelberger wrote § 87(2)(b) the six § 87(2)(b) summonses.

Witness Officer: Police Officer Michael Duffy

- Police Officer Michael Duffy, a § 87(2)(b) white male, § 87(2)(b), with brown hair and blue eyes
- On February 20, 2010, Police Officer Duffy worked from 5:30 p.m. until 2:05 a.m., assigned to Queens Impact Response Team. He was partnered with Police Officer Daniel Gukelberger, on foot, and was dressed in uniform.

Memo Book (encs. 10a-b)

Police Officer Michael Duffy noted in his memo book that at 6:15 p.m., he and PO Gukelberger stopped § 87(2)(b) for having illegal tinted car windows at Sutphin and Rockaway Boulevards in Queens. When § 87(2)(b) was stopped in his 2000 black BMW with license plate #§ 87(2)(b) he became agitated and made threats against PO Gukelberger by stating, "You sure you really want to do this officer?" § 87(2)(b) was then issued summonses § 87(2)(b).

Police Officer Michael Duffy provided a statement to the CCRB on May 11, 2010 (encs. 10c-d). Police Officer Duffy stated that he and Police Officer Gukelberger was on foot patrol when they stopped § 87(2)(b) in his vehicle, at the corner of Sutphin and Rockaway Boulevards in Queens, for having illegal tinted car windows. They first approached § 87(2)(b)'s vehicle from behind for their safety. As they stood in back of the car, PO Gukelberger used his hand to knock on the back car window and told § 87(2)(b) to roll down the back car window, but § 87(2)(b) yelled that his back car window could not roll down. PO Gukelberger then told § 87(2)(b) to unlock his back car door because his car windows were dark and § 87(2)(b) complied. They saw no one in the car and proceeded to walk to the front of § 87(2)(b).

§ 87(2)(b) car. PO Gukelberger then asked § 87(2)(b) for his driver's license, which he provided, and told him to pull over at the corner of Rockaway Boulevard and he complied.

Simultaneously, as they walked up to § 87(2)(b) to explain why they had pulled him over, § 87(2)(b) had exited his vehicle and proceeded to walk towards them, while asking why they pulled him over. At this time, PO Duffy said they told § 87(2)(b) about three times, to reenter his car and he refused. PO Gukelberger then grabbed § 87(2)(b) shoulder and guided/escorted him back into the car. Eventually, § 87(2)(b) entered the car, and as PO Gukelberger was about to close the car door, § 87(2)(b) replied that he could "close his own door" then grabbed the car door and slammed it. However, PO Duffy said this was the extent of PO Gukelberger's physical contact with § 87(2)(b). PO Duffy also denied that PO Gukelberger used any force on § 87(2)(b) or heard § 87(2)(b) complain about back pain or damage to his vehicle. Instead PO Duffy said that § 87(2)(b) had pointed to a cane that was in the back seat of his car and told them he was handicapped, but never specified his handicap. PO Duffy described § 87(2)(b)'s demeanor throughout this entire incident as "irate," which was why they called for Sergeant Armstrong who later arrived. § 87(2)(b) also called 911 and told them, "You sure you really want to do this officers?" However, PO Duffy denied that PO Gukelberger used any profanity towards § 87(2)(b).

Medical Records (encs. 11a-h)

§ 87(2)(a) PBH §18(6)

Other Evidence

§ 87(2)(b) also provided the investigator with copies of § 87(2)(b) summonses numbers § 87(2)(b) and § 87(2)(b) that contain written comments made by PO Gukelberger, which read, "I've got to deal with these punk ass cops" and "I don't have to get back in my car." § 87(2)(b) acknowledged that he made these comments.

Summons/Arrest for Incident and Disposition

On § 87(2)(b), summons numbers § 87(2)(b) and § 87(2)(b) § 87(2)(b) were dismissed (encl. 12). However, the four additional dispositions for VTL summonses (§ 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) issued to § 87(2)(b) are pending as of November 18, 2010.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of October 28, 2010 with regard to the incident (enc.14).

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (enc. 5).

Subject Officer CCRB History

- Police Officer Daniel Gukelberger has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 4).

Conclusion

Identification of Subject Officer

§ 87(2)(b) identified the subject officer, Police Officer Daniel Gukelberger by his name, which he obtained from the summonses and saw on the officer's nameplate. Police Officer Gukelberger also confirmed his involvement with § 87(2)(b) during this incident.

Investigative Findings and Recommendations

Allegation A- Discourtesy: Police Officer Daniel Gukelberger spoke obscenely and/or rudely to § 87(2)(b)

PO Daniel Gukelberger admitted that he saw § 87(2)(b) who was alone, seated in his vehicle talking on a cellular phone when he and PO Michael Duffy had approached his car with tinted car windows. PO Gukelberger said he told § 87(2)(b) to lower his back car window because he could not see into the car and § 87(2)(b) replied that his car window could not roll down. Although, PO Gukelberger admitted that he told § 87(2)(b) to lower his back car window, he denied telling § 87(2)(b) to lower his fucking car window. PO Gukelberger also said when § 87(2)(b) was talking on his cellular phone that he told the person on the phone, "Hold on, I've got to deal with these punk ass cops." § 87(2)(b) corroborated this. However, PO Gukelberger denied that he told § 87(2)(b) to "hang up [his] fucking phone because [he] was in charge."

PO Gukelberger also admitted that he issued § 87(2)(b) the six summonses. However, prior to issuing § 87(2)(b) the summonses, § 87(2)(b) had exited his vehicle. § 87(2)(b) corroborated this. However, PO Gukelberger said he then told § 87(2)(b) about three times, to reenter his vehicle, but he did not immediately comply. Instead § 87(2)(b) said, "I don't have to get back into my car. I could do whatever I want." Although, PO Gukelberger denied that § 87(2)(b) told him he had back pain, he said that § 87(2)(b) told him he had an unspecified handicap. However, PO Gukelberger denied telling § 87(2)(b) "I don't give a shit about your back, get back into the car." During this time, PO Duffy was also present but he denied that PO Gukelberger used any profanity when talking to § 87(2)(b).

According to Patrol Guide procedure 203-09 (enc. 2), officers are prohibited from using discourteous remarks. § 87(2)(g) § 87(2)(h)

§ 87(2)(b) § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as unsubstantiated.

Allegation B- Force: Police Officer Daniel Gukelberger used physical force against § 87(2)(b)

PO Gukelberger acknowledged that he placed his hands on § 87(2)(b)'s shoulder to turn and guide him back towards his vehicle, after he had exited the car, and refused his repeated lawful command to reenter the vehicle. However, PO Gukelberger denied that he assisted § 87(2)(b) with reentering his vehicle.

§ 87(2)(b) admitted that he had exited his car, but could not quickly reenter his car because he suffered from prior back problems. As he entered the car, he held onto the car's door and ceiling for about twenty seconds. At this time, § 87(2)(b) claimed that PO Gukelberger grabbed the front of his jacket and pushed him, about ten times, into the car, which further triggered his back pain. § 87(2)(g)

According to the Patrol Guide procedure 203-11 (encs. 3a-b), all uniformed members of service are responsible and accountable for the proper use of force under appropriate circumstances. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as exonerated.

Team: FIVE

Investigator: _____ Simone Cherry _____
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date